

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MARK CRUCEY

Plaintiff,

Index No.:

SUMMONS

-against-

DETECTIVE BRIAN GRECO, NEW YORK CITY
POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.
----- X

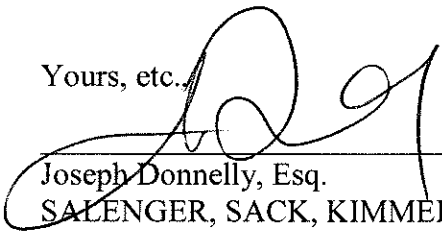
The place of trial is designated in the caption of this matter. The basis of venue is:
The County where the defendants' principal place of business is located and where the incident
occurred.

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive
of the date of service (or within 30 days after the service is complete if this summons is not
personally delivered to you within the State of New York); and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: Woodbury, New York
November 2, 2017

Yours, etc.



Joseph Donnelly, Esq.

SALENGER, SACK, KIMMEL & BAVARO, LLP
Attorneys for Plaintiff
180 Froehlich Farm Boulevard
Woodbury, New York 11797
(516) 677-0100

TO:

DETECTIVE BRIAN GRECO

100 Church Street, New York, NY 10007

Also serve at: 1 Police Plaza, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

100 Church Street, New York, NY 10007

Also serve at: 1 Police Plaza, New York, NY 10007

THE CITY OF NEW YORK

100 Church Street, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
MARK CRUCEY

Plaintiff,

-against-

Index No.:

**VERIFIED
COMPLAINT**DETECTIVE BRIAN GRECO, NEW YORK CITY
POLICE DEPARTMENT and THE CITY OF NEW YORK.Defendants.
-----XPlaintiff, complaining of the defendants, by his attorneys, SALENGER, SACK, KIMMEL
& BAVARO, LLP, respectfully show to the court and allege as follows:**FIRST CAUSE OF ACTION
FOR FALSE ARREST**

1. At all times hereinafter mentioned, plaintiff MARK CRUCEY is a resident of the County and State of New York.
2. Notice of plaintiff's claims against the defendants, setting forth the nature of the claims, the description of the time, place and manner in which the injuries were sustained by the plaintiff and the name and post office address of the plaintiff and of his attorneys, was presented to the governing body of said defendants on or about February 17, 2017.
3. The Notice of Claim was filed within the statutory time period for filing said Notice of Claim, provided by New York State General Municipal Law.
4. At least thirty (30) days have elapsed since service of such Notice of Claim without payment or adjustment of such claim and adjustment or payment thereof has been rejected or refused.
5. On September 15, 2017, a hearing of plaintiff was held pursuant to General Municipal Law Section 50-h.

6. Upon information and belief, at all times hereinafter mentioned, defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

7. Upon information and belief, at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

8. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains a municipal agency, incorporated and operating under the laws of the State of New York.

9. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains a public authority, incorporated and operating under the laws of the State of New York.

10. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains under the supervision and control of defendant CITY.

11. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains the principal law enforcement agency for defendant CITY.

12. Upon information and belief, at all times hereinafter mentioned, defendant CITY was charged with the duty of enforcing the laws, statutes and/or ordinances for the City of New York, State of New York.

13. Upon information and belief, at all times hereinafter mentioned, defendant CITY controlled law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

14. Upon information and belief, at all times hereinafter mentioned, defendant CITY operated law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

15. Upon information and belief, at all times hereinafter mentioned, defendant CITY maintained law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

16. Upon information and belief, at all times hereinafter mentioned, defendant CITY supervised law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

17. Upon information and belief, at all times hereinafter mentioned, defendant CITY trained law enforcement agents, servants and/or employees, for the City of New York, State of New York.

18. Upon information and belief, at all times hereinafter mentioned defendant NYPD was charged with the duty of enforcing the laws, statutes and/or ordinances for the City of New York, State of New York.

19. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

20. Upon information and belief, at all times hereinafter mentioned defendant NYPD operated law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

21. Upon information and belief, at all times hereinafter mentioned defendant NYPD maintained law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

22. Upon information and belief, at all times hereinafter mentioned defendant NYPD supervised law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

23. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained law enforcement agents, servants and/or employees, for the City of New York, State of New York.

24. Upon information and belief, at all times hereinafter mentioned defendant NYPD operated law enforcement agents, servants and/or employees, for purpose of investigating crimes.

25. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed police officers for the purpose of investigating crimes including offenses involving the sale and possession of controlled substances.

26. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant DETECTIVE BRIAN GRECO.

27. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant DETECTIVE BRIAN GRECO for the purpose of investigating crimes including offenses involving the sale and possession of controlled substances.

28. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained police officers how to investigate crimes including offenses involving the sale and possession of controlled substances.

29. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained DETECTIVE BRIAN GRECO how to investigate crimes including offenses involving the sale and possession of controlled substances.

30. Upon information and belief, at all times hereinafter mentioned defendant NYPD supervised police officers how to investigate crimes including offenses involving the sale and possession of controlled substances.

31. Upon information and belief, at all times hereinafter mentioned defendant NYPD supervised DETECTIVE BRIAN GRECO how to investigate crimes including offenses involving the sale and possession of controlled substances.

32. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled police officers on the manner which they investigated crimes including offenses involving the sale and possession of controlled substances.

33. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled DETECTIVE BRIAN GRECO on the manner which they investigated crimes including offenses involving the sale and possession of controlled substances.

34. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained police officers how to lawfully arrest individuals suspected of committing crimes.

35. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained DETECTIVE BRIAN GRECO how to lawfully arrest individuals suspected of committing crimes.

36. Upon information and belief, at all times hereinafter mentioned defendant NYPD supervised DETECTIVE BRIAN GRECO on how to lawfully arrest individuals suspected of committing crimes.

37. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled police officers on the manner which they arrested individuals suspected of committing crimes.

38. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled DETECTIVE BRIAN GRECO on the manner which he arrested individuals suspected of committing crimes.

39. On December 1, 2016, plaintiff MARK CRUCEY resided at 65 Fort Washington Avenue, Apartment 61, New York, NY 10032.

40. On December 1, 2016, plaintiff MARK CRUCEY had a legitimate expectation of privacy at 65 Fort Washington Avenue, Apartment 61, New York, NY 10032.

41. On December 1, 2016, at approximately 5:30 a.m., plaintiff MARK CRUCEY was lawfully present inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, when the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entered said location.

42. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY was detained by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO.

43. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY was arrested by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO.

44. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY's body was searched by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO.

45. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY's property was searched by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO.

46. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY did not consent to the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entering said location.

47. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, plaintiff MARK CRUCEY did not consent to being detained, arrested, and searched by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO.

48. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entered said location without consent.

49. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW

YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entered said location without exigent circumstances.

50. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entered said location without probable cause.

51. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO entered said location without a warrant.

52. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO detained, arrested and searched plaintiff MARK CRUCEY without consent.

53. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO detained, arrested and searched plaintiff MARK CRUCEY without reasonable suspicion.

54. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO detained, arrested and searched plaintiff MARK CRUCEY without probable cause.

55. On the above date and time, inside 65 Fort Washington Avenue, Apartment 61, County of New York, City and State of New York, the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and DETECTIVE BRIAN GRECO detained, arrested and searched plaintiff MARK CRUCEY without a warrant.

56. On December 1, 2016, at approximately 5:30 a.m., inside of 65 Fort Washington Avenue, County of New York, City and State of New York, plaintiff MARK CRUCEY, was lawfully present when, without consent, reasonable suspicion, probable cause, or a warrant, and in violation of his State and Federal Constitutional rights, plaintiff was stopped, searched, detained, handcuffed, imprisoned, arrested and removed from the above location by the defendants CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, DETECTIVE BRIAN GRECO, and their agents, servants, and/or employees, and taken into the defendants custody where he remained until approximately December 13, 2016.

57. The defendants, their agents, servants and/or employees, jointly and severally, were reckless, grossly negligent, negligent and careless in that they failed to hire, monitor, train and supervise the detectives and police officers who investigate crimes; failed to properly investigate the facts and circumstances herein; defendants failed to properly train defendants on proper procedure on stopping, seizing and arresting members of the public in allowing defendants to stop, seize and arrest members of the public without reasonable suspicion, probable cause, or a warrant; in allowing the defendants to routinely deprive members of the public of their State and Federal Constitutional rights; in failing to monitor members of the NYPD; defendants detained, arrested and incarcerated the plaintiff without a warrant or probable cause; defendants detained and arrested plaintiff without a warrant or probable cause for a crime not committed in defendant's presence in violation of the Criminal Procedure Law including but not limited to section 140.10; defendants

recklessly and with gross negligence failed to have witnesses identify plaintiff; defendants failed to properly identify the proper individual; defendants failed to take necessary steps to ensure the correct individual was arrested; defendants recklessly and with gross negligence disregarded plaintiff's exculpatory explanation; defendants failed to make further inquiry when a reasonable person would have done so; defendants reckless, negligent and intentional acts and/or failure to act deprived plaintiff of his State and Federal Constitutional rights and protections; defendants questioned plaintiff without counsel; failed to properly advise the plaintiff of his rights; unlawfully deprived the plaintiff of proper legal representation; failed to follow and violated their own guidelines; failed to act reasonably under the circumstances; failed to take proper cognizance of the existing facts and conditions; in that defendants recklessly investigated crimes; failed to exercise proper use of handcuffs, failed to promptly and properly release said plaintiff from custody at the appropriate time; failed to timely and adequately analyze evidence after arrest; defendants intended to confine plaintiff; the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and the confinement was not otherwise privileged; defendants initiated criminal proceedings against plaintiff without probable cause; defendants terminated the criminal action in plaintiff's favor; defendants, between the time of detention and the time of institution of the criminal proceeding against plaintiff had knowledge of intervening facts that exonerated plaintiff and failed to timely act; in that defendants initiated criminal proceedings against plaintiff with malice; the criminal proceeding was brought in reckless disregard of the rights of the plaintiff; respondents continued the criminal proceedings without probable cause; defendants violated the United States Code, including but not limited to sections 1981 through 1988 of Title 42; violated the civil rights of the plaintiff, defamed plaintiff, disgraced plaintiff, and in otherwise being negligent in the instance.

58. That since the acts complained of herein occurred, plaintiff MARK CRUCEY was subjected to unlawful harassment and intimidation; unlawful detention and false and unlawful arrest; illegal search; unlawful and false placement in handcuffs in the back seat of an unmarked police patrol vehicle; false imprisonment; embarrassment and humiliation; public disgrace; public embarrassment; suffered great mental and physical distress, in addition to personal injuries, including but not limited to bruises and abrasions of his bilateral wrists, as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

59. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

60. Upon information and belief, at all times hereinafter mentioned, defendant DETECTIVE BRIAN GRECO is a party to this action individually and in his capacity as an agent of defendant CITY and/or defendant NYPD.

61. At all times relevant to this action, DETECTIVE BRIAN GRECO was acting and/or holding himself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

62. Plaintiff has a right to be free from illegal searches and seizures of his person; a right to be free from unlawful arrest, detention, and imprisonment; a right to equal protection of

the laws; civil rights secured to plaintiff by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution and by Title 42 of the United States Code Section 1983, as well as the Constitution and laws of the State of New York.

63. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty of defendants CITY, NYPD, and DETECTIVE BRIAN GRECO owed to plaintiff, to carry out their official police duties in a manner that is consistent with the Constitution and laws of New York State and the United States of America.

64. At all times relevant herein, it is alleged that all defendants breached these duties owed to plaintiff.

SECOND CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

65. Plaintiff repeats and re-alleges paragraphs each and every allegation contained above as if fully set forth and restated here.

66. On or about November 16, 2016, the defendants, their agents, servants and/or employees, jointly and/or severally, had initiated a criminal prosecution against plaintiff MARK CRUCEY by way of a Grand Jury proceeding under indictment number 4388N/2016.

67. The commencement of the criminal proceeding against plaintiff, MARK CRUCEY, was for ulterior and/or improper purpose and without basis in fact, reasonable cause and/or probable cause.

68. Thereafter, the plaintiff MARK CRUCEY was taken to a NYPD Precinct in New York County by the defendants, their agents, servants and/or employees, jointly and/or severally. The plaintiff was then detained and imprisoned at the hand of the defendants, their agents, servants

and/or employees, jointly and/or severally, against plaintiff's will and consent and without reasonable cause therefore.

69. Plaintiff MARK CRUCEY was detained, searched, and questioned by defendants without consent.

70. On or about December 1, 2016, the defendants, their agents, servants and/or employees, jointly and/or severally, arraigned the plaintiff MARK CRUCEY under indictment number 4388N/2016. Defendants arrested, took into custody and maliciously prosecuted plaintiff who was aware of such arrest and malicious prosecution and did not consent to it.

71. During the pendency of the criminal proceedings, the defendants, their agents, servants and/or employees, jointly and/or severally, kept plaintiff, MARK CRUCEY, incarcerated in correctional facilities owned, operated, supervised by, and/or controlled by defendant CITY, their agents, servants and/or employees, jointly and/or severally.

72. The defendants continued the criminal proceedings against plaintiff MARK CRUCEY after learning said proceeding lacked merit.

73. On or about December 12, 2016, the Special Narcotics Prosecutor voluntarily consented to the release of plaintiff MARK CRUCEY on his own recognizance and voluntarily dismissed the criminal proceedings against plaintiff.

74. On or about January 11, 2017, the Honorable Judge Clott of the Supreme Court of New York County dismissed the criminal proceeding under indictment number 4388N/2016 against the plaintiff MARK CRUCEY and all pending criminal charges related to the action against the plaintiff were dismissed.

75. The defendants, their agents, servants and/or employees, jointly and severally, were reckless, grossly negligent, negligent and careless in that they failed to hire, monitor, train and supervise the detectives and police officers who investigate crimes; failed to properly investigate the facts and circumstances herein; defendants failed to properly train defendants on proper procedure on stopping, seizing and arresting members of the public in allowing defendants to stop, seize and arrest members of the public without reasonable suspicion, probable cause, or a warrant; in allowing the defendants to routinely deprive members of the public of their State and Federal Constitutional rights; in failing to monitor members of the NYPD; defendants detained, arrested and incarcerated the plaintiff without a warrant or probable cause; defendants detained and arrested plaintiff without a warrant or probable cause for a crime not committed in defendant's presence in violation of the Criminal Procedure Law including but not limited to section 140.10; defendants recklessly and with gross negligence failed to have witnesses identify plaintiff; defendants failed to properly identify the proper individual; defendants failed to take necessary steps to ensure the correct individual was arrested; defendants recklessly and with gross negligence disregarded plaintiff's exculpatory explanation; defendants failed to make further inquiry when a reasonable person would have done so; defendants reckless, negligent and intentional acts and/or failure to act deprived plaintiff of his State and Federal Constitutional rights and protections; defendants questioned plaintiff without counsel; failed to properly advise the plaintiff of his rights; unlawfully deprived the plaintiff of proper legal representation; failed to follow and violated their own guidelines; failed to act reasonably under the circumstances; failed to take proper cognizance of the existing facts and conditions; in that defendants recklessly investigated crimes; failed to exercise proper use of handcuffs, failed to promptly and properly release said plaintiff from custody at the appropriate time; failed to timely and adequately analyze evidence after arrest;

defendants intended to confine plaintiff; the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and the confinement was not otherwise privileged; defendants initiated criminal proceedings against plaintiff without probable cause; defendants terminated the criminal action in plaintiff's favor; defendants, between the time of detention and the time of institution of the criminal proceeding against plaintiff had knowledge of intervening facts that exonerated plaintiff and failed to timely act; in that defendants initiated criminal proceedings against plaintiff with malice; the criminal proceeding was brought in reckless disregard of the rights of the plaintiff; respondents continued the criminal proceedings without probable cause; defendants violated the United States Code, including but not limited to sections 1981 through 1988 of Title 42; violated the civil rights of the plaintiff, defamed plaintiff, disgraced plaintiff, and in otherwise being negligent in the instance.

76. That since the acts complained of herein occurred, plaintiff MARK CRUCEY was subjected to unlawful harassment and intimidation; unlawful detention and false and unlawful arrest; illegal search; unlawful and false placement in handcuffs in the back seat of an unmarked police patrol vehicle; false imprisonment; embarrassment and humiliation; public disgrace; public embarrassment; suffered great mental and physical distress, in addition to personal injuries, including but not limited to bruises and abrasions of his bilateral wrists, as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

77. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING AND SUPERVISION

78. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

79. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD controlled the hiring of its agents, servants and/or employees, including but not limited to the police officers and detectives.

80. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD controlled the hiring of DETECTIVE BRIAN GRECO.

81. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD supervised the hiring of its agents, servants, and/or employees, including but not limited to the police officers and detectives.

82. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD supervised the hiring of DETECTIVE BRIAN GRECO.

83. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to control its agents, servants and/or employees, including but not limited to the police officers and detectives.

84. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to control DETECTIVE BRIAN GRECO.

85. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to supervise its agents, servants and/or employees, including but not limited to police officers and detectives.

86. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to supervise DETECTIVE BRIAN GRECO.

87. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had and still has full power and authority to provide initial and ongoing training, and to supervise and control the conduct and action of police officers and detectives employed by it in the exercise of police functions.

88. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty and special duty of defendants CITY and NYPD, owed to plaintiff, to monitor, supervise, and control the conduct and actions of the aforesaid police officers and detectives employed by it in the exercise of police functions.

89. Upon information and belief, at all times hereinafter mentioned, defendants CITY and/or NYPD, negligently and/or intentionally acted under color of state law, engaged in a pattern of actions and/or conduct and/or omissions by its officers designed to and/or which has the effect of depriving individuals of their clear rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

90. Upon information and belief, at all times hereinafter mentioned, defendants CITY and/or NYPD, negligently and/or intentionally failed to properly train and/or supervise their law enforcement agents as to the appropriate and reasonable methods for identifying the commissions of acts sufficient to justify legal arrest and/or effectuation of legal and reasonable arrest.

91. Upon information and belief, at all times hereinafter mentioned, defendants CITY and/or NYPD, negligently and/or intentionally acted under color of state law, engaged in a pattern and practice and/or sanctioned a pattern and practice of actions and/or conduct by its officers designed to and/or conduct by its officer designed to and/or which has the effect of depriving individuals of their clear rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

92. Upon information and belief, at all times hereinafter mentioned, defendants CITY and/or NYPD, negligently and/or intentionally failed to properly train and/or supervise their law enforcement agents as to the appropriate and reasonable methods for identifying the commissions of acts sufficient to justify legal arrests and/or effectuation of legal and reasonable arrests.

93. Based on the foregoing, one and/or more of the above municipalities are vicariously liable for the violations of plaintiff's constitutional rights by one and/or more of their respective employees.

94. Based upon the foregoing, one more of the above-named defendants violated 42 U.S.C. Section 1983, given that these actions were undertaken under color of state law.

95. Plaintiff's injuries arose from the inadequate supervision, hiring and/or control of the servants, agents, and/or employees defendants, failed to properly screen and evaluate their potential servants, agents, and/or employees; failed to properly reevaluate their servants, agents, and/or employees; failed to use reasonable care, in failing to draft, enforce, and/or follow reasonable and adequate guidelines; in failing to follow standard operating procedure; in failing to properly train said agents, servants and/or employees; in negligently retaining said, agents, servants and/or employees; in willfully, wantonly, recklessly and/or negligently using excessive force and violence; allowed defendants to enter individuals' homes without warrants; allowed

defendants to detain, search and arrest individuals without probable cause or reasonable suspicion; allowed defendants to detain, search and arrest individuals based on racial profiling and/or improper economic gain; in failing to conduct an investigation concerning said, agents, servants and/or employees; in failing to use reasonable care to correct or remove said agents, servants and/or employees; and in otherwise being careless, reckless and negligent herein.

96. That since the acts complained of herein occurred, plaintiff MARK CRUCEY was subjected to unlawful harassment and intimidation; unlawful detention and false and unlawful arrest; illegal search; unlawful and false placement in handcuffs in the back seat of an unmarked police patrol vehicle; false imprisonment; embarrassment and humiliation; public disgrace; public embarrassment; suffered great mental and physical distress, in addition to personal injuries, including but not limited to bruises and abrasions of his bilateral wrists, as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

97. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

98. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

99. Defendants, DETECTIVE BRIAN GRECO, NYPD and CITY intentionally engaged in behavior that harassed and intimidated the plaintiff and falsely detained, falsely and illegally incarcerated, arrested, and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer physical and emotional distress for which said defendants are individually liable.

**FIFTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

100. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

101. Defendants, DETECTIVE BRIAN GRECO, NYPD and CITY negligently engaged in behavior that harassed and intimidated the plaintiff and falsely detained, falsely and illegally incarcerated; arrested; and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer physical and emotional distress for which said defendants are individually liable.

**SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

102. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

103. At all times relevant hereto, defendants DETECTIVE BRIAN GRECO was acting within the scope of his employment as a detective of defendants NYPD and CITY.

104. The defendants, CITY and NYPD, are liable for compensatory damages under the doctrine of *respondeat superior* for the intentional torts of defendant DETECTIVE BRIAN GRECO committed within the scope of his employment.

**SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES**

105. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

106. The acts, conduct, and behavior of the defendants, and each of them, were performed knowingly, intentionally, maliciously, and conspiratorially, and were so egregious as to shock the conscience.

107. By reason of the foregoing, plaintiff is entitled to an award of punitive damages in the sum of ONE MILLION FIVE HUNDRED THOUSAND (\$1,500,000.00) dollars.

**EIGHTH CAUSE OF ACTION FOR
ATTORNEY'S FEES**

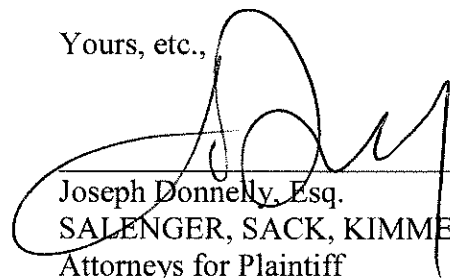
108. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

109. By the reason of the foregoing, plaintiff is entitled to an award of reasonable attorneys' fees, pursuant to 42 U.S.C. Section 1988.

WHEREFORE, the plaintiffs demand judgment against the defendants on all causes of action on behalf of plaintiff MARK CRUCEY in an amount in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action and for such other and further relief as to this court may seem just and proper.

Dated: Woodbury, New York
November 2, 2017

Yours, etc.,



Joseph Donnelly, Esq.
SALENGER, SACK, KIMMEL & BAVARO, LLP
Attorneys for Plaintiff
180 Froehlich Farm Boulevard
Woodbury, New York 11797
(516) 677-0100

ATTORNEYS AFFIRMATION

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms the following under the penalties of perjury, that the affiant is a(n) member of

Salenger, Sack, Kimmel & Bavaro, LLP

attorney(s) of record for the plaintiff(s) in the within action; that the affiant has read the foregoing

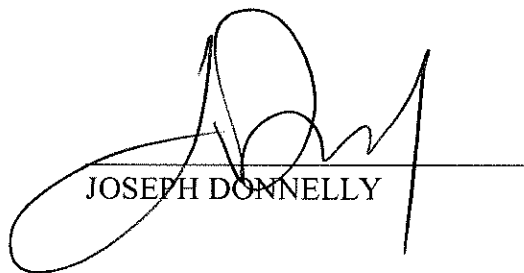
COMPLAINT

same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. Affiant further says that the reason this affirmation is made by affiant and not by the plaintiff(s), is that the plaintiff(s) are outside the County where our office is maintained.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Statements of the plaintiff(s), contents of file, books and records.

Dated: Woodbury, New York
November 2, 2017


JOSEPH DONNELLY